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Case Number: 26NWCV01684 Hearing Date: September 17, 2026 Dept: D

DONNOVAN LEWERY v. DOWNEY'S

BILLIARD, LLC, et al.

CASE NO.: 26NWCV01684

HEARING: 09/17/2026 @ 9:30 a.m.

#16

TENTATIVE ORDER

Defendant HGG's Motion to

Expunge Lis Pendens is granted.

Plaintiff is ordered to pay Defendant \$9,762.50 in fees.

Moving party(s) to give notice.

Defendant HGG Firestone, LLC

("HGG") moves to expunge the lis pendens recorded by Plaintiff Donovan Lewery on May 18, 2026 againsts HGG's real property located at 8206-8214 Firestone Blvd., Downey, CA 90241 (the "Shopping Center").

Background

Plaintiff obtained a judgment

against Defendant Downey's Billiard, LLC d/b/a Club DB Lounge ("Club DB") in

the amount of \$750,000 in Case No. 19STCV30200 ("Prior Action"). On May 13, 2026, Plaintiff filed the instant action against Defendants Club DB, HGG, Hayk Gevorkyan ("Hayk") and George

Gevorkyan ("George") for declaratory relief seeking an order declaring HGG, Hayk and George to be the alter egos of Club DB and imposing the judgment from the prior action against them.

On May 18, 2026, Plaintiff recorded a lis pendens with the Los Angeles County Recorder against HGG's Shopping Center. On July 21, 2026, HGG filed the instant motion to expunge lis pendens. On September 3, 2026, Plaintiff filed an opposition. On September 10, 2026, HGG filed a reply.

Legal Standard

In a motion to expunge a notice of lis pendens, the claimant who filed the lis pendens has the burden of proof. (Code of Civil Procedure, §405.30.) Thus, that claimant, in opposing the motion to expunge the lis pendens, must demonstrate the following: (1) the action affects title to or right of possession of the real property described in the notice; (2) in so far as the said notice is concerned, the party recording the notice has commenced the action for a proper purpose and in good faith; and (3) the probable validity of the real property claim by a preponderance of the evidence. (Hunting World, Inc. v. Superior Court (1994) 22 Cal.App.4th 67, 70; Code of Civ. Proc., §405.30, et seq.) The court must order the notice expunged if it finds the pleading on which the notice is based does not contain a real property claim (Code of Civil Procedure section 405.31) or the claimant has not established by a preponderance of the evidence the probable validity of the real property claim (Code of Civil Procedure section §405.32). A claim has "probable validity" where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim. (Code of Civ. Proc., §481.190.)

In determining whether the action affects title to or right of possession of the real property described in the notice, "[w]hether real party's action is ultimately meritorious is not relevant to the determination of the propriety of his lis pendens. The issue is simply whether the action as pleaded is one that affects title or possession of the subject property." (Urez v. Supr. Ct. (1987) 190 Cal.App.3d 1141, 1149.)

“Unlike most motions, the party opposing a motion to expunge bears the burden to show the existence of a real property claim. In considering whether the burden has been met, the court engages in “a demurrer-like analysis. The trial court and the reviewing court both review the complaint to determine if a real property claim has been properly pleaded.” (Shoker v. Supr. Ct. (2022) 81 Cal.App.5th 271, 277-278.)

“Where partners or joint venturers have agreed to buy a specific parcel of real property, and one partner or joint venturer, in breach of a fiduciary duty, wrongfully acquires it in his own name, the other partner or joint venturer may bring an action to impose a constructive trust and require the wrongdoing partner or joint venturer to convey the appropriate share of the legal title. Assuming the truth of plaintiffs' allegations, as we must in this demurrer-like context, plaintiffs may be entitled to imposition of a constructive trust requiring the defendants to convey to plaintiffs the share of the legal title plaintiffs would have acquired had not the defendants breached their duties toward plaintiffs.” (BGJ Associates, LLC v. Supr. Ct. (1999) 75 Cal.App.4th 952, 970.)

In *Coppinger v. Superior Court* (1982) 134 Cal.App.3d 883, 891, the court pointed out that an action to impose a constructive trust has been held to be one for the recovery of real property and therefore the action affects title to or possession of real property for purposes of the lis pendens expungement statute. (*Coppinger*, supra, 134 Cal.App.3d at 891.)

However, subsequent cases have disagreed with *Coppinger*'s expansive interpretation of what qualifies as a real property claim and have distinguished, limited, or explicitly rejected its reasoning. (*Urez*, supra, 75 Cal.App.4th at 1149; *BGJ Associates*, supra, 75 Cal.App.4th at 968.)

In *Urez*, the plaintiff was a former lien holder and the court found no basis for a real property claim. “It is essentially a fraud action seeking money damages with additional allegations urged to support the equitable remedies of a constructive trust or an equitable lien. Real party does not claim any ownership or possessory interest in the subject property.

Rather, he seeks reinstatement or creation of a 'beneficial' interest in the property for the purpose of securing payment of money owed him under his defunct second trust deed." (Urez, supra, 75 Cal.App.4th at 1149.)

The court in BGJ Associates acknowledged that there was no straightforward answer to whether a claim for constructive trust can support a lis pendens, noting that an absolute rule either way failed to account for the reality that sometimes it may and other times it may not. Thus, "what the Legislature has done in section 405.4 is to leave to the courts to determine in particular cases whether a claim supporting a constructive trust will justify the maintenance of a lis pendens...In determining this issue on a case-by-case basis, the courts have been restrictive because of well-known dangers that the lis pendens procedure can be abused to coerce a defendant to settle a claim. The courts have looked to the substance of the dispute to determine whether it is 'essentially' a fraud action seeking money damages, with constructive trust allegations 'appended.'" (Id. at 970-971.)

Applying these principles to the facts before it, the court in BGJ Associates held that no real property claim was alleged to support a lis pendens. "In a case such as this where the pleading combines theories of liability for monetary damages and for a constructive trust, we hold that plaintiffs should not be able to maintain a lis pendens. The danger is too great that a lis pendens, which effectively renders the property unmarketable, will have the coercive effects condemned by the cases." (Id. at 971.)

The question of whether an action for constructive trust will support a lis pendens was discussed recently in Shoker. "Some actions present easy questions under the statute. A buyer's suit seeking specific performance of a real property purchase and sale agreement is obviously a real property claim. On the other hand, an action for money damages alone is not a real property claim—even if it involves real property in some way. (BGJ Associates v. Superior Court (1999) 75 Cal.App.4th 952, 967–968 [89 Cal.Rptr.2d 693] (BGJ Associates).) Despite the statute's straightforward language, it has never been entirely clear if a claim that seeks to impose a constructive trust on real property

affects title to or possession of real property.” (Shoker, *supra*, 81 Cal.App.5th at 278.)

Shoker rejected the approach adopted in *BGJ Associates*, in which the court “looked past the plaintiffs’ real property claim to the broader ‘substance’ of the dispute” and concluded despite the allegation of a real property claim, “the case was essentially a fraud action seeking money damages, to which constructive trust allegations were merely appended.” (Shoker, *supra*, 81 Cal.App.5th at 179.) Shoker found *BGJ Associates*’ fear that the *lis pendens* procedure would be abused absent a test allowing the court to “look past” the real property claim was unfounded. Shoker explained that the Legislature’s revision of the statutory scheme allowed for multiple avenues to limit abuse of the *lis pendens* scheme. (Id. at 280.) While rejecting *BGJ Associates*’ analysis, Shoker maintained that the propriety of a *lis pendens* in cases alleging constructive trust must be evaluated on a case-by-case basis and did not reject *Urez*’s distinction between actions alleging constructive trust where a *lis pendens* is appropriate and one where it is not:

“In reaching this conclusion, we note that we need not decide the continuing validity of the other cases in the *Urez* line. The case law distinguishes between two subtypes of constructive trust claims. First, there are constructive trust claims that are akin to fraudulent conveyance claims because they seek a constructive trust on real property that was itself wrongfully taken and, if successful on the merits, plaintiffs would regain title to or possession of the same property. On the other hand, there are claims seeking a constructive trust or equitable lien on different property, merely as a means to secure collection of a debt. [¶] Here, we are dealing with the former type of constructive trust claim—the Shokers claim a present right to title in the same real properties they claim were wrongfully obtained by Phangureh....With the exception of *BGJ Associates*, the *Urez* line of cases deals with the latter use of constructive trust—where the plaintiff seeks to impose a constructive trust or equitable lien on real property only as a means to secure a debt. To the extent any cases within the *Urez* line can be read as holding that a constructive trust claim can never constitute a real property claim under section 405.4, we respectfully disagree.” (Shoker, *supra*, 81 Cal.App.5th at 282–283.)

Request for Judicial Notice

Defendant HGG's Request for

Judicial Notice is granted pursuant to Evidence Code section 452 subdivision (c) and (d). Exhibits 1 to 6 are filings and records of the California Secretary of State.

Exhibits 7 to 12 are records from the prior action and the instant action.

Evidentiary Objections

Objection Nos. 1-22 overruled to

the extent based on George Gevorkyan being a non-English speaker. Plaintiff relies solely on George Gevorkyan's use of an interpreter at the judgment debtor exam and his testimony that he speaks and writes very little English.

Objection No. 2 based on relevance overruled.

Objection No. 22 based on improper legal opinion is sustained.

Analysis

Plaintiff's

complaint does not allege a real property claim that affects title or possession of property under Code of Civil Procedure section 405.31

Plaintiff's complaint is a

classic action for money judgment or a collection action with an incidental allegation of constructive trust. Although Plaintiff is alleging a declaratory relief action against HGG, Plaintiff is seeking a declaration that (1) HGG is the alter ego of Club D and (2) HGG's Shopping Center is therefore subject to the \$750,000 personal injury judgment entered against Club G in the Prior Action.

There is no allegation that HGG fraudulently obtained or acquired the Shopping Center from Plaintiff. There is no claim that Plaintiff has any right to title or possession of the Shopping Center. The Shopping Center is only at

issue as an asset from which the judgment in the Prior Action may be satisfied. Plaintiff's complaint fails allege a real property claim under Code of Civil Procedure section 405.31. Plaintiff's complaint is "an action for money damages alone" and it "is not a real property claim—even if it involves real property in some way." (Shoker, *supra*, 81 Cal.App.5th at 278; Urez, *supra*, 75 Cal.App.4th at 1149.)

Plaintiff argues his abstract of judgment against the assets of Club D will apply to the Shopping Center if the Court finds HGG to be the alter ego of Club D. However, the mere fact that a judgment lien may issue against the Shopping Center does not transform this action from an action for money judgment alone into an action affecting title or possession of the Shopping Center under section 405.31. If this were the rule, a lis pendens could be recorded in every action for money damages where the defendant's assets include real property. "A number of California courts have considered whether a complaint seeking the imposition of an equitable lien or other equitable security interest in real property constitutes a real property claim under the lis pendens statutes. The majority of these courts have concluded that a claim that seeks an interest in real property merely for the purpose of securing a money damage judgment does not support the recording of a lis pendens." (Campbell v. Superior Court (2005) 132 Cal.App.4th 904, 912.)

Defendant HGG is entitled to attorney's fees and costs pursuant to Code of Civil Procedure section 405.38

Pursuant to Code of Civil Procedure section 405.38, the prevailing party on a motion to expunge lis pendens is entitled to the reasonable attorney's fees incurred in making the motion, unless the other party acted with substantial justification. The attorney's fees award is imposed against the party and not counsel. (Doyle v. Sup.Ct. (Jacinth Develop., Inc.) (1991) 226 Cal.App.3d 1355, 1359.)

The trial court has broad discretion to determine what constitutes a reasonable fee. (PLCM Group, Inc. (2000) 22 Cal.4th 1084, 1095.) "The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in

its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.” (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623-624.) If the Court reduces the requested attorney fees as unreasonable, it is not obligated to justify its decision by identifying specific time entries with which it finds fault. (Id. at 625.) To require otherwise would be inconsistent with the general rule that the trial court is entitled to take all circumstances into account when determining the reasonableness of attorney fees. (Id.) The trial court is therefore not bound by an attorney's evidence in support of his fees. (Vella v. Hudgins (1984) 151 Cal.App.3d 515, 524.)

Defendant HGG requests fees in the amount of \$9,762.50 based on 17.75 hours at a rate of \$550 per hour. Defendant HGG expended 14.25 hours in connection with preparing the motion and an anticipated 3.5 hours to review the opposition and prepare the reply. Defendant HGG's request is reasonable given the complexity of the motion and applicable law.

Conclusion

Defendant HGG's Motion to Expunge Lis Pendens is granted. Plaintiff is ordered to pay Defendant \$9,762.50 in fees within 30 days of this order.